Sangeeta Devi W/O Sh. Vinod Kumar Singh vs Mahesh Chand & Ors on 16 March, 2018

Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court)
Karkardooma Courts, Delhi.

In the Court of Sh. G. N. Pandey
Motor Accident Claims Tribunal(Pilot Court)
Karkardooma Courts, Delhi.

DAR No. 14937/15

IN THE MATTER OF :-

Sangeeta Devi W/o Sh. Vinod Kumar Singh
r/o H. No. G-5/9, Gali No. 2, 5th Pusta, Sonia Vihar,
Delhi. Mother
..... Petitioner

V E R S U S

Mahesh Chand s/o Sh. Kishori Lal
r/o 13A, Gali No. 2, Kaushal Puri,
Chauhan Patti, Sonia Vihar, Delhi.

..... Responden

Date of Institution of DAR : 06.11.2015
Date of Judgment/Order : 16.03.2018

A W A R D:-

1. By this order, I shall dispose off the DAR petition filed by the IO for grant of compensation to the injured in view of the provisions of Motor Vehicle Act, 1988. The DAR petition is treated as claim petition in view of section 158 (6) of the MV Act, 1988.

2. Briefly the facts of the case are that on 14.01.2014 at about 3 PM, deceased alongwith her mother were going towards Annpurna Mandir for DAR No. 14937/15 1 of 16 Sangeeta Devi V/s Mahesh Chand & Ors.

Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

worship from residence. When they reached at Annpurna Mandir, mother of

deceased was going inside the Mandir for worship and deceased was plying outside of the Mandir and when mother of deceased came outside of the Mandir, she saw that her son reached main road Sonia Vihar near Annpurna Mandir and in the meanwhile, suddenly a motorcycle No. DL 3 S BY 5198 which was being driven by its driver/ respondent No. 1 at a very high speed, rashly, negligently without blowing any horn came in zig zag manner and hit her son namely Shivam with a great force. Due to this, her son fell down on the road and sustained grievous injuries all parts of his body. After the accident, her son was removed to Jag Pravesh Chandra Hospital, Delhi and thereafter referred to Lok Nayak Hospital, Delhi where he died during the course of treatment and postmortem conducted in Maulana Azad Medical College & Lok Nayak Hospital on 14.01.2014.

3. Reply not filed on behalf of respondent despite last and final opportunities therefore right to file reply of respondent No. 1 was closed vide order dt. 14.03.2016.

4. On the basis of the pleadings of the parties, following issues were framed:☐

1. Whether deceased died on account of injuries sustained in accident took place on 14.01.2014 at about 3:40 PM at main Sonia Vihar road near Annpurna Mandir, Delhi within the jurisdiction of PS Sonia Vihar due to rash and negligent driving of vehicle bearing No. DL 3 SBY 5198 by respondent No. 1 ?OPP

2. Whether petitioners are entitled to compensation ? If so DAR No. 14937/15 2 of 16 Sangeeta Devi V/s Mahesh Chand & Ors.

Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

to what amount and from whom? OPP

3. Relief.

5. Mother of deceased filed her affidavit by way of evidence Ex. PW 1/A and examined as PW☐ 1. The witness deposed nothing but deposed regarding the contention in the petition. She also deposed regarding the relevant documents i.e. Ex. PW 1/1 to Ex. PW 1/ 4. PE was thereafter closed.

6. Respondent did not lead RE despite opportunities therefore RE was closed.

7. I have heard Ld. Counsel for petitioner and ld. Counsel for respondent and considered the relevant materials on record. My issue wise findings are as below :☐ISSUE No. 1.

1. Whether deceased died on account of injuries sustained in accident took place on 14.01.2014 at about 3:40 PM at main Sonia Vihar road near Annpurna Mandir, Delhi within

the jurisdiction of PS Sonia Vihar due to rash and negligent driving of vehicle bearing No. DL 3 SBY 5198 by respondent No. 1 ?OPP

8. To succeed in the petition in view of Section 166 of the MV Act, it is for the claimant to prove that vehicle which caused the accident was being driven rashly and negligently by its driver. Mother of deceased deposed about the facts of the case. She was cross□examined by ld. Counsel for respondents and during cross□ examination nothing has come forward in her testimony to disbelieve the version of PW. On the other hand, respondents did not examine any witness to rebut the contentions and deny the claim of the petitioner and DAR No. 14937/15 3 of 16 Sangeeta Devi V/s Mahesh Chand & Ors.

Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

mere denial is not sufficient to rebut the claim of the petitioner. No witness was produced or examined by respondents as well to prove as to how accident occurred due to the negligence of the deceased; the respondent was not at fault and was not driving the vehicle in rash and negligent manner. The DAR filed by IO Ex. PW 1/4 which includes copy of FIR, site plan, MLC etc. There is no reason to disbelieve the testimony of witnesses. I have gone through the record and documents in respect of the accident caused to the petitioner which is prima facie suggestive of negligence of respondent in driving the vehicle at the time of accident.

Relied judgment in (Bimla Devi and Ors. v. Himachal Road Transport Corporation and Ors., (2009) 13 SC 530 and the judgment in Parmeshwari v. Amir Chand (2011) 11 SCC 635 and Kusum Lata v. Satbir, (2011) 3 SCC

646).

Hon'ble Supreme Court in Bimla Devi and Ors. V/s Himachal Road Transport Corporation and Ors, (2009) 13 SC 530 held as under:

> "15. In a situation of this nature, the Tribunal has rightly taken a holistic view of the matter. It was necessary to be borne in mind that strict proof of any accident caused by a particular bus in a particular manner may not be possible to be done by the claimant. The claimants were merely to establish their case on the touchstone of preponderance of probability. The standard of proof beyond reasonable doubt could not have been applied."

9. In judgment of Hon'ble Delhi High Court in United India Insurance Company Ltd. Vs. Deepak Goel & Ors., 2014 (2), T.A.C. 846 (Del.), it was held that in a case, where FIR is lodged, chargesheet is filed, then the DAR No. 14937/15 4 of 16 Sangeeta Devi V/s Mahesh Chand & Ors.

Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

documents mentioned above are sufficient to establish the fact that the driver of the vehicle in question was negligent in causing the accident particularly when there was no defence available from his side. In case of Cholamandalam M.S. General Insurance Co. Ltd. v. Kamlesh, 2009 (3) AD (Delhi) 310, an adverse inference was drawn because the driver of the offending vehicle had not appeared in the witness box to corroborate his defence taken in the written statement. It was noted that there was nothing on record to show that the Claimant had any enmity with the driver of the offending vehicle so as to falsely implicate him in the case.

10. I have gone through the judgment of Hon'ble High Court of Delhi in 2009 ACJ 287, National Insurance Company Limited Vs. Pushpa Rana to examine the aspect of negligence wherein in the Hon'ble High Court held that:□In case the petitioner files the certified copy of the criminal record or the criminal record showing the completion of the investigation by the police or the issuance of charge sheet under section 279/304 A IPC or the certified copy of the FIR or in addition the recovery memo and the mechanical inspection report of the offending vehicle, these documents are sufficient proof to reach to the conclusion that the driver was negligent. It was further held that the proceedings under the Motor Vehicles Act are not akin to the proceedings in a civil suit and hence strict rules of evidence are not required to be followed in this regard.

Further, in Kaushnumma Begum and others V/s New India Assurance Company Limited, 2001 ACJ 421 SC, the issue of DAR No. 14937/15 5 of 16 Sangeeta Devi V/s Mahesh Chand & Ors.

Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

wrongful act or omission on the part of driver of the motor vehicle involved in the accident has been left to a secondary importance and it was held that, mere use or involvement of motor vehicle in causing bodily injuries or death to a human being or damage to property would made the petition maintainable under section 166 and 140 of the Act. It is also settled law that the term rashness and negligence has to be construed lightly while making a decision on a petition for claim for the same as compared to the word rashness and negligence as finds mention in the Indian Penal Code. This is because the chapter in the Motor Vehicle Act dealing with compensation is a benevolent legislation and not a penal one. Further the Hon'ble High Court of Delhi in MAC App. No.200/2012 in case titled as United India Insurance Co. Ltd. V/s. Smt. Rinki @ Rinku & Ors decided on 23/07/2012 by Hon'ble Delhi High Court, held as under:

"The Claims Tribunal was conscious of the fact that negligence is a sine qua non to a Petition under Section 166 of the Motor Vehicles Act, 1988(the Act). It is also true that the proceedings for grant of compensation under the Act are neither governed by the criminal procedures nor are a civil suit.

11. Therefore, in view of the criminal case record, it is proved that the deceased sustained fatal injuries in the accident which occurred on 14.01.2014 due to rash and negligent driving of offending vehicle bearing No. DL 3 SBY 5198 driven by its driver i.e. respondent. The issue is decided accordingly.

```
Issue No. ii :-
      (ii)     Whether petitioner is entitled to compensation ? If so to

       DAR No. 14937/15                                                    6 of
Sangeeta Devi V/s Mahesh Chand & Ors.
```

Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

what amount and from whom? OPP

12. The Hon'ble Supreme Court in Nagappa V/s Gurdayal Singh reported as 2003(2) SCC 274 ruled that the main guiding principle for determining the compensation is that it must be just and further that it must be reasonable. As observed in UP State Road Transport corporation V/s Trilok Chandra (1996) 4 SCC 362, the compensation awarded in such cases has primarily two elements; the pecuniary loss to the estate of the deceased resulting from the accident and the pecuniary loss sustained by members of his family on account of his death in addition to the conventional award under non pecuniary heads of damages(e.g. loss of consortium, loss of love and affection, funeral expenses etc).

13 The damages are to be based on the reasonable expectation on pecuniary benefit or benefits reduceable to money value. In General Manager Kerala State Road Transport Corporation V/s Susamma Thomas reported as (1994) 2 SCC 176, the court ruled that in fatal accident action, the measure of damages is the pecuniary loss suffered or likely to be suffered by each dependent as a result of death and that :□"9.The assessment of damages to compensate the dependants is beset with difficulties because from the nature of things, it has to take into account many imponderables, e.g., the life expectancy of the deceased and the dependants, the amount that the deceased would have earned during the remainder of his life, the amount that he would have contributed to the dependants during that period, the chances that the deceased may not have lived or the dependants may DAR No. 14937/15 7 of 16 Sangeeta Devi V/s Mahesh Chand & Ors.

Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

not live up to the estimated remaining period of their life expectancy, the chances that that deceased might have got better employment or income or might have lost his employment or income altogether".

14. Hon'ble Supreme Court in Sarla Verma V/s DTC reported as (2009) 6 SCC 121 held as under:

16. ... "Just compensation" is adequate compensation which is fair and equitable, on the facts and circumstances of the case, to make good the loss suffered as a result of wrong, as far as money can do so, by applying the well settled principles relating to award of compensation. It is not intended to be a bonanza, largesse or source of profits.

17. Assessment of compensation though involving certain hypothetical considerations, should nevertheless be objective. Justice and justness emanate from equality in treatment, consistency and thoroughness in adjudication, and fairness and uniformity in the decision making process and the decisions. While, it may not be possible to have mathematical precision or identical awards, in assessing compensation same or similar facts should lead to award in the same range. When the factors/ inputs are the same, and the formula/ legal principles are the same, consistency and uniformity and not divergence and freakiness, should be the result of adjudication to arrive at just compensation.

15. No amount of compensation can restore, eliminate or ameliorate the DAR No. 14937/15 8 of 16 Sangeeta Devi V/s Mahesh Chand & Ors.

Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

loss suffered on account of death (or injury with lasting effect) the endeavor by such award is to repair the damage done so as to restore the victim(which includes the dependent) to the extent possible to the preaccidental position. The pecuniary damages are meant to take care of the prospective pecuniary loss of future income and the non pecuniary damages to compensate, to an extent, for pain and suffering , loss of love, companionship, expectation of life etc. The Hon'ble Supreme Court in R. K Malik V/s Kiran Pal reported as 2009 (14) SCC 1 observed as under:

22. It is extremely difficult to quantify the non pecuniary compensation as it is to a great extent based upon the sentiments and emotions. But, the same could not be a ground for non payment of any amount whatsoever by stating that it is difficult to quantify and pinpoint the exact amount payable with mathematical accuracy.

23. Human life cannot be measured only in terms of loss of earning or monetary losses alone. There are emotional attachments involved and loss of a child can have a devastating effect on the family which can be easily visualised and understood. Perhaps , the only mechanism known to law in this kind of situation is to compensate a person who has suffered non pecuniary loss or damages as a consequence of the wrong done to him by way of damages / monetary compensation. Undoubtedly, when a victim of a wrong suffers injuries he is entitled to compensation including compensation DAR No. 14937/15 9 of 16 Sangeeta Devi V/s Mahesh Chand & Ors.

Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

for the prospective life, pain and suffering, happiness, etc., which is sometimes described as compensation paid for "loss of expectation of life".

16. The method for computation of compensation for the date of death of children appeared to be non informed and consistence. The challenge in determining the ' just and reasonable' compensation in such cases is mainly due to the fact that there is virtually no evidence in actual loss of earning of the deceased child. Hon'ble Supreme Court in R. K. Malik(supra) noted:☐

25. That being the position, the crucial problem arises with regard to the quantification of such compensation. The injury inflicted by deprivation of the life of a child is extremely difficult to quantify. In view of the uncertainties and contingencies of human life, what would be an appropriate figure, an adequate solatium is difficult to specify. The courts have therefore used the expression "standard compensation"

> and conventional amount/ sum" to get over the difficulty that arises in quantifying a figure as the same ensures consistency and uniformity in awarding compensation."

17. In view of the aforesaid legal positions, the question of law concerning the method of calculation of compensation in accident claim cases involving deaths of children in motor Vehicle accident was thoroughly examined and analyzed by Delhi High Court in MAC Apps. No. 554/2010 & Conn. decided on 13.05.2016. The Hon'ble High Court laid down the formula to be adopted for computation of just compensation in case of death of children so that there is no disparity while considering the nature of future prospects and inflationary DAR No. 14937/15 10 of 16 Sangeeta Devi V/s Mahesh Chand & Ors.

Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

trends affecting the loss of real value of money. It was considered that there can hardly ever be a clear proof of pecuniary loss resulting from death and the cases for compensation on account of death of children in Motor Vehicle Accident cases ought to be dealt with by considering the claim towards pecuniary damages (towards loss of estate), in accordance with the age group wise categories as in RK Malik (Supra). The income is to be notionally assumed on the basis of the second schedule of the M.V. Act and the deduction of 1/3rd on account of personal and living expenses would be appropriate. The award of compensation must necessarily take into account non pecuniary damages.

Hon'ble Delhi High Court in para 71 of the judgment noted:□Subject to all other requisite conditions being fulfilled, for the foregoing reasons, in order to bring about consistency and uniformity in approach to the issue, it is held that claims for compensation on account of death of children shall be determined as follows:□

(i) Till such time as the law is amended by the legislature, or the Central Government notifies the amendment to the Second Schedule in exercise of the enabling power vested in it by Section 163□A(3) of the Motor Vehicles Act, 1988, and except in cases wherein the prospects of employability and earnings (in future or present) of the deceased child are proved by cogent and irrefutable evidence, this having regard, inter alia, to the academic record or training in special talents or skills, for computing the pecuniary damages on account of the loss to estate, the notional income of non□earning persons(Rs. 15,000/□DAR No. 14937/15 11 of 16 Sangeeta Devi V/s Mahesh Chand & Ors.

Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

p.a) as specified in the second schedule (brought in force from 14.11.1994), shall be assumed to be the income of the deceased child, and taken into account after it is inflation corrected with the help of Cost inflation Index (CII) as notified by the Government of India from year to year under Section 48 of the Income Tax , 1961 , by applying the formula indicated hereinafter.

(ii) For inflation correction, the financial year of 1997□ 1998 shall be treated as the "base year" and the value of the notional income relevant to the date of cause of action shall be computed in the following manner:□Rs. 15,000/□X A /331 {Wherein the figure of Rs. 15,000/□ ' represents the notional income specified in the second schedule requiring inflation□ correction; 'A' represent the CII for the financial year in which the cause of action arose (i.e. the accident/ death occurred); and the figure of '331' represent the CII for the 'base year'}.

(iii) After arriving at an appropriate figure of the present equivalent value of the notional income (i.e. inflation

corrected amount), it shall be rounded off to a figure in next thousands of rupees.

(iv) The amount of notional income thus calculated shall be reduced to two☐ third, the deduction to the extent of one third being towards personal & living expenses of the deceased, DAR No. 14937/15 12 of 16 Sangeeta Devi V/s Mahesh Chand & Ors.

Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

the balance taken as the annual loss to estate (hereinafter also referred to as "the multiplicand").

(v) For assessment of the pecuniary damages on account of the death of children upto the age of 10 years, the loss to estate shall be calculated, capitalizing the multiplicand, by applying the multiplier of ten (10).

(vi) For children of the age group of more than 10 years upto 15 years, the loss to estate shall be calculated by applying the multiplier of fifteen(15)

(vii) For Children of the age group of more than 15 years but less than 18 years, the loss to estate shall be calculated by applying the multiplier of eighteen (18).

(viii) After the pecuniary loss to estate has been worked out in the manner indicated above, an amount equivalent to the amount thus computed shall be added to it as the composite non pecuniary damages taking care of not only the conventional heads but also towards future prospects as awarded in R. K. Malik V/s Kiran Pal (2009) 14 SCC 1.

(ix) The final sum thus arrived at, appropriately rounded off, if so required to the nearest (if not next) thousands of rupees, shall be awarded as compensation for the death of the child.

18. I have gone through the testimony of the witnesses alongwith complete records. The petitioner has prayed for compensation against respondents. It is argued by Ld counsel for respondent that petitioner has not suffered any DAR No. 14937/15 13 of 16 Sangeeta Devi V/s Mahesh Chand & Ors.

Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

monetary loss on account of the fatal accident and therefore, she is not entitled for compensation.

There is no dispute at all regarding the offending vehicle nor there is dispute that deceased received fatal injuries due to the accident. The factum of accident as well as death is not denied. As per adhar card of deceased, the

year of birth of deceased is 2005. The accident took place on 14.01.2014. The age of the deceased is taken as about 10 years on the date of accident.

19. There is no evidence regarding the academic record of the deceased child. The death occurred on 14.01.2014 and therefore the CII(cost inflation index) for the financial year 2013□2014 i.e. Rs. 939/□would apply. The age of the deceased child was about 10 years and therefore the calculation is to be made on multiplier of 10. The inflation calculated notional income comes to Rs. 42,553/□(15,000/□ x 939/331), rounded off Rs. 43,000/□ After deducting 1/3rd and applying the multiplier of 10, the pecuniary loss to estate is computed as (Rs. 43,000/□ x 1/3 x 10) Rs. 2,86,667/□ Adding a similar amount towards composite non pecuniary damages, the total compensation works out to be Rs. (2,86,667/□x 2) = Rs. 5,73,334/□

I accordingly award an amount of compensation of Rs. 5,73,334/□ rounded to Rs. 5,74,000/□in favour of the Claimant and against Respondent. Liability:□ In this case, respondent is the driver of the offending vehicle therefore respondent is liable to pay the compensation to the petitioner. Interim award if any paid to injured/ petitioner be adjusted in the award amount. Award :□

20. Resultantly, the DAR petition stands allowed. Respondent is hereby DAR No. 14937/15 14 of 16 Sangeeta Devi V/s Mahesh Chand & Ors.

Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

directed to pay the compensation of Rs. 5,74,000/□ within one month to the Claimant. Claimant is also entitled to the interest @ 09 % p.a. on the total compensation amount from the date of filing of petition till realization. (The New India Assurance Co. Ltd. Vs. Gopali & Ors., 2012 ACJ 2131 SC, Jiju Kuruvila & Ors. Vs. Kunjujamma Mohan & Ors., 2013 ACJ 2141 SC, Puttamma Vs. K.L. Naraynan Reddy & Ors., 2014 ACJ 526 SC).

21. Respondent is directed to deposit the amount with UCO Bank, KKD Courts Branch, Delhi.

22. Out of the total award amount of Rs. 5,74,000/□, UCO Bank, KKD Courts is directed to keep the amount of Rs. 5,00,000/□in 100 FDRs of Rs. 5,000/□ each for the maturity period of 1 to 100 months with cumulative interest in the name of petitioner.

23. UCO Bank, KKD Courts is directed to release the remaining amount alongwith interest in favour of petitioner in her saving bank account after production of passbook of the bank account near the place of the residence with due endorsement that no debit card or cheque book has been issued or debit card / cheque book has been cancelled (if issued).

24. Withdrawal from the said Account shall be permitted to the petitioner after due verification.

25. All the original FDRs shall be retained by the UCO bank, KKD Courts. However, the statement containing the FDRs number, amount, date of maturity and maturity amount shall be furnished by the UCO Bank to the petitioner/ beneficiary. On expiry of period of each FDR, the Bank shall automatically credit the maturity amount in Savings Account of beneficiary. The beneficiary shall intimate regarding his bank and account number for DAR No. 14937/15 15 of 16 Sangeeta Devi V/s Mahesh Chand & Ors.

Sh. G. N. Pandey, Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

automatic credit of the maturity amount.

26. No loan, advance or premature discharge of the FDRs shall be permitted without permission of this court.

27. The maturity amount of the FDRs alongwith interest thereon be transferred to the saving bank accounts of the beneficiary.

28. The liberty is given to the petitioner/ injured to approach this court for release of further amount in event of any financial exigency.

29. On request of Claimant, bank shall transfer the Savings Account to any other branch in the name of petitioner and the bank of the petitioner are directed not to issue any cheque book or Debit Card to the account holder.

30. The award amount alongwith interest be deposited by respondent, within 30 days in the court.

31. Form□V shall be read as a part of the judgment.

GORAKH NATH PANDEY

Announced in open Court

on this 16th day of March, 2018

NATH PANDEY

North East D
Karkardooma
Date: 2018.0
+0530

G. N. Pandey

Motor Accident Claims Tribunal(Pilot Court) Karkardooma Courts, Delhi.

DAR No. 14937/15 16
Sangeeta Devi V/s Mahesh Chand & Ors.